

PART B

Syndicate Agreement

Nellie Syndicate Agreement

Evolution Stables – Almanzor x Night Danza (unnamed) (NZ)

NZTR Authorised Syndicator

Date: 5 August 2026

1. Formation

A Syndicate is formed under the New Zealand Thoroughbred Racing Inc. ("NZTR") Bloodstock Syndication Code of Practice ("COP"), in accordance with Clause 3.1, by the Promoter as set out in the attached Product Disclosure Statement ("the Syndicate").

2. Object

The object of the Syndicate is to lease and race Almanzor x Night Danza (unnamed) (marketed as Nellie) as a recreational pursuit, with all syndicate members holding digital leasehold shares for a fixed 36-month term, as described in the Product Disclosure Statement.

3. Agreement and Parties

This Agreement is binding on the Promoter (Evolution Stables Ltd), the Syndicate Manager (Evolution Stables), and each Shareholder (token holder) as defined in the Product Disclosure Statement. By signing the Application Form (physically or digitally via Tokinvest), each Shareholder agrees to be bound by this Agreement and the Product Disclosure Statement. This Agreement may only be altered by special resolution (75% of shareholding) and must not increase a Shareholder's liability beyond what is disclosed in the Product Disclosure Statement.

4. Syndicate Shares (Tokens)

The Syndicate is divided into 20 digital shares (tokens) of 0.25% each, representing a 5% leasehold interest in Almanzor x Night Danza (unnamed) for the Lease Term. Shares are issued and recorded on Tokinvest's VARA-compliant platform (where applicable), enabling digital onboarding, compliance, and (subject to Manager approval) transfer. Each Shareholder's rights and obligations are proportional to their shareholding.

5. Lease Duration

The lease term is fixed at 36 months, commencing 1 September 2026 and ending 1 August 2029. All lease terms are counted in full calendar months. The lease may be renewed or extended at the Manager's and Lessor's discretion, with terms disclosed to Shareholders prior to renewal.

6. Manager's Powers and Duties

The Manager (Evolution Stables) is responsible for overall lease administration and NZTR compliance, including communication with shareholders and coordination with licensed professionals. The Manager may: make day-to-day racing, training, spelling, and welfare decisions; appoint or change trainers in consultation with the owner or Racing Manager; deduct disclosed fees; delegate to licensed parties; and provide regular updates.

7. Financial Contributions and Fees

All costs for the disclosed term are covered by the one-time, upfront lease fee as detailed in the Product Disclosure Statement (\$661.50 NZD per 0.25% token), unless the lease is renewed. Tokinvest platform fees and management fees are included in the upfront payment as disclosed.

8. Revenue Streams and Distribution

Token holders are entitled to a share of revenue generated by Nellie during the lease period attributable to the syndicate stake, proportional to their leased stake. The disclosed revenue split is 75% to token holders and 25% retained by the lessor/structure as set out in the PDS. Potential streams include race winnings, sponsorship, media, digital, hospitality, and other verifiable income.

9. Insurance and Early Termination

Insurance and early-termination consequences are as disclosed in the PDS. Where the lease ends early due to circumstances set out in the PDS, fee treatment follows the PDS.

10. Transfer of Shares (Tokens)

Shares (tokens) may only be transferred with the written consent of the Manager and in accordance with NZTR and platform requirements. All transfers must be recorded by the Syndicate Manager.

11. Decision-Making and Voting

Day-to-day racing and welfare decisions rest with the Manager (and licensed professionals as delegated). Matters requiring special resolution (75% of shareholding) are limited as described in clause 3.

12. Dispute Resolution

Parties will first attempt good-faith resolution with the Manager. Unresolved disputes may proceed under New Zealand law and any dispute process referenced in the final executed pack or NZTR frameworks.

13. Removal of Manager

Removal or replacement of the Manager, if ever applicable, will follow the process set out in the final executed Syndicate Agreement and NZTR requirements. Until then, Evolution Stables Ltd remains Manager.

14. Winding Up and Post-Lease Arrangements

On expiry or winding up, remaining distributions (if any) and administrative close-out follow the PDS. Leasehold rights end on termination; no freehold interest in the horse is created by this Agreement.

15. Governing Law

This Syndicate Agreement and the terms of the Product Disclosure Statement are governed by the laws of New Zealand and the Rules of Racing administered by NZTR.

16. Notices

Notices to participants may be sent by email to the address provided on application, or via the Evolution / Tokinvest platforms used for the syndicate.

17. Execution

This Agreement may be executed in counterparts and by electronic means. Together with the PDS and completed application, it forms the basis of the participant's leasehold interest.

18. Acknowledgement

Each Shareholder acknowledges they have received the PDS and this Agreement, understand that participation is leasehold only (not freehold ownership of the horse), and accept the risks of racing investment including possible loss of capital.

Shareholder

Name: _____

Interest: — (allocation not set — general syndicate pack)

Signed: _____ Date: _____

For the Promoter / Manager — Evolution Stables Ltd

Alex Baddeley, Director

Signed: _____ Date: _____

Appendices — supporting documents

The following documents are incorporated by reference into this Investor Pack. Executed packs should embed or annex the full PDFs.

*No appendices selected in the wizard. Add vet / valuation / other under
_assets/horses/almanzor-x-night-danza/documents/{vet|valuation|...}/.*

Counsel / founder: mark approved wording in this file, then freeze final PDF for investor send + e-sign.

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